

PETITION FOR PROBATE OF WILL AND FOR LETTERS TESTAMENTARY
AND AUTHORIZATION TO ADMINISTER UNDER THE INDEPENDENT
ADMINISTRATION OF ESTATES ACT

TENTATIVE RULING: The Petition is GRANTED. Michael Torr is appointed as probate referee. The matter is set for a Status Hearing Re: Final Distribution on August 11, 2027, at 8:30 a.m. in Dept. B. The Status Hearing may be vacated or continued without appearances needed if, prior thereto, the personal representative files a petition for an order for final distribution or a report of status of administration pursuant to Probate Code section 12200. The clerk is directed to provide notice to the parties.

CIVIL LAW & MOTION CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

PLAINTIFF’S MOTION TO COMPEL RESPONSES TO WRITTEN DISCOVERY AND TO
COMPEL DEPOSITION

TENTATIVE RULING: The Motion is GRANTED. Kimberton Wines, LLC (Kimberton) is ordered to produce code-compliant responses, without objection save those based on attorney-client privilege or attorney work product, within 20 calendar days of Notice of Entry of the instant order. Kimberton is further ordered to, within 20 calendar days of Notice of Entry of order, designate and set a date, within 45 days of the Notice of Entry of Order, and time for deposition pursuant to the subject deposition notice. Plaintiff Meteor Growers, LLC (Meteor) is directed to serve and file a Notice of Entry of the instant order.

Plaintiff Meteor Growers, LLC (Meteor) moves, pursuant to California Rule of Court, rule 3.1348, and Code of Civil Procedure sections 2025.450, 2030.290, and 2033.280, for an order: (1) Compelling Defendant Kimberton Wines, LLC (Kimberton) to serve verified responses to written discovery; (2) Compelling Defendant Kimberton Wines, LLC to designate and produce its person most qualified for deposition; and (3) Deeming admitted the truth of each matter specified in Plaintiff’s RFAs.

A. FACTUAL FINDINGS

Based on the evidence submitted in support of the motion, the Court finds as follows.

1. On March 23, 2026, Meteor served Kimberton with a Notice of Taking Deposition of Person Most Qualified, setting deposition for April 30, 2026. (See Declaration of John A. Heffner at ¶ 3 and Exh. C.)
2. On May 11, 2026, Meteor served Kimberton with Form Interrogatories. And Requests for Admissions. (See *id.* at ¶¶ 6 and 7 and Exhs. A and B.)